

TENTATIVE RULING FOR CIVSB2406630
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Padilla v. 2A&A Transport, et al

Motion: Determination of Good Faith Settlement

Movant: Jose Hernandez Cruz (Defendant/Cross-Defendant/Cross-Complainant/Cruz)

Respondent: 2A&A Transport (2A&A) and Alma Delia Renteria Valles (Valles), (collectively Defendant/Cross-Defendant/Cross-Complainant)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On April 2, 2024, Plaintiff Angelo Cuba Padilla (Padilla) filed a complaint against Defendants 2A&A, Valles, and Cruz alleging one cause of action for negligence. Plaintiff's complaint arises from a multi-vehicle collision that occurred on December 3, 2022. On May 21, 2024, 2A&A and Valles filed a cross-complaint against Cruz for implied indemnity, equitable contribution, and declaratory relief. On August 28, 2025, Cruz filed his own cross-complaint against 2A&A and Valles for indemnity, declaratory relief, and apportionment of fault.

Cruz now moves for a determination that his settlement with Plaintiff was made in good faith under Code of Civil Procedure section 877.6. Cruz also seeks dismissal of the May 21, 2024 cross-complaint filed by 2A&A and Valles. 2A&A and Valles oppose.

ANALYSIS

If a court approves a settlement as having been made in good faith, non-settling defendants are barred from pursuing any claims for indemnification against the settling defendant. (Code Civ. Proc., § 877.6.) There is no precise yardstick for measuring “good faith” of a settlement with one of several tortfeasors; the settlement must be within the reasonable range of the settling tortfeasor's share of liability for the plaintiff's injuries, taking into consideration the facts and circumstances of the particular case. (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499 (*Tech-Bilt*).)

To determine whether a settlement has been made in good faith, the court examines: a rough approximation of plaintiff's total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than if found liable after a trial. (*Tech-Bilt, supra*, at p.

499.) Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud or tortious conduct aimed at injuring the interests of nonsettling defendants. (*Ibid.*)

“At a minimum, a party seeking confirmation of a settlement must explain to the court and to all other parties: who has settled with whom, the dollar amount of each settlement, if any settlement is allocated, how it is allocated between issues and/or parties, what nonmonetary consideration has been included, and how the parties to the settlement value the nonmonetary consideration.” (*Alcal Roofing & Insulation v. Sup. Ct.* (1992) 8 Cal.App.4th 1121, 1129.)

After the minimum showing, the burden of proof is on the party opposing the motion to show that the proposed settlement is not in good faith. (Code Civ. Proc., § 877.6, subd. (d); *Tech-Bilt*, *supra*, 38 Cal.3d at p. 499-500; *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261-1262.) The party asserting the lack of good faith must demonstrate that the settlement is so far “out of the ballpark” as to be inconsistent with the equitable objectives of the statute. (*Tech-Bilt*, *supra*, 38 Cal.3d at pp. 499-500.)

2A&A and Valles oppose the motion on several grounds. First, Cruz’s original motion relied on the Traffic Collision Report and counsel’s declaration rather than competent evidence. Second, Cruz’s proportionate liability is not minimal because his disabled vehicle remained stopped in a freeway lane and allegedly created the hazard. Third, the motion provided only a conclusory assertion regarding Cruz’s \$25,000 policy limits and financial condition, with no declaration from Cruz, no financial statement, no evidence of income, assets, liabilities, coverage structure, excess or umbrella coverage, or other recovery sources. Finally, the dismissal request was defective under rule 3.1382 because the notice did not list the filing date of the affected cross-complaint.

In reply, Cruz submits new evidence in an attempt to cure the defects pointed out by 2A&A and Valles. This new evidence is material. The supplemental Cruz declaration and deposition excerpts bear directly on the *Tech-Bilt* factors, including Cruz’s proportionate liability, financial condition, and available insurance. The evidence is not merely repetitive of the moving papers; it is submitted to fill evidentiary gaps specifically identified in the opposition. The rule 3.1382 issue is also material because the original notice did not include the filing date of the affected cross-complaint, and Cruz supplied that filing date only in reply.

The Court is inclined to use its discretion and consider the new evidence. Where a court considers new reply evidence, the opposing party should be given an opportunity to respond. (*Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349, 362, fn. 8; *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316.) As such, the Court shall continue this matter, to give objecting parties a fair opportunity to respond to the new material evidence and claimed procedural cure.

RULING

1. Motion for determination of good faith settlement shall be continued to allow objecting parties to file sur reply.
2. Movant to give Notice.